

No. 26-10936

**In the United States Court of Appeals
for the Eleventh Circuit**

AMERICAN SECURITIES ASSOCIATION, CITADEL SECURITIES LLC,
PETITIONERS

v.

U.S. SECURITIES AND EXCHANGE COMMISSION,
RESPONDENT

CONSOLIDATED AUDIT TRAIL, LLC, THE NASDAQ STOCK
MARKET, LLC, ET AL.,
INTERVENORS

*ON PETITION FOR REVIEW OF AN ORDER
OF THE SECURITIES AND EXCHANGE COMMISSION (RELEASE NO. 26-10936)*

**MOTION FOR LEAVE TO FILE BRIEF OF AMICUS CURIAE SECURITIES
INDUSTRY AND FINANCIAL MARKETS ASSOCIATION IN SUPPORT OF THE
PETITION FOR REVIEW AND MOTION FOR A STAY**

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and Exchange Commission***

**CERTIFICATE OF INTERESTED PERSONS
AND CORPORATE DISCLOSURE STATEMENT**

Pursuant to 11th Cir. R. 26.1-1, amicus curiae Securities Industry and Financial Markets Association provides the following list of interested persons:

- 24X National Exchange LLC, *member of intervenor Consolidated Audit Trail, LLC*
- American Securities Association, *petitioner*
- ArentFox Schiff, LLP, *counsel for intervenors Cboe BYX Exchange, Inc.; Cboe BZX Exchange, Inc.; Cboe EDGA Exchange, Inc.; Cboe EDGX Exchange, Inc.; Cboe C2 Exchange, Inc.; and Cboe Exchange, Inc.*
- Ballard Spahr, LLP, *counsel for intervenors The NASDAQ Stock Market LLC, NASDAQ GEMX, LLC; NASDAQ ISE, LLC; NASDAQ MRX, LLC; NASDAQ PHLX, LLC; and NASDAQ Texas, LLC*
- Berman, Ari M., *counsel for NYSE intervenors*
- Borse Dubai Limited, *owner of 10% or greater interest in NASDAQ, Inc.*
- BOX Exchange LLC, *member of intervenor Consolidated Audit Trail, LLC*
- Boyle, Gregory, *counsel for intervenor Consolidated Audit Trail, LLC*
- Cboe BYX Exchange, Inc., *intervenor*

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- Cboe BZX Exchange, Inc., *intervenor*
- Cboe C2 Exchange, Inc., *intervenor*
- Cboe EDGA Exchange, Inc., *intervenor*
- Cboe EDGX Exchange, Inc., *intervenor*
- Cboe Exchange, Inc., *intervenor*
- Cboe Global Markets, Inc. (BATS: CBOE), *indirect owner of 10% or greater interest in intervenor Consolidated Audit Trail, LLC, and direct or indirect parent company of Cboe BYX Exchange, Inc.; Cboe BZX Exchange, Inc.; Cboe EDGA Exchange, Inc.; Cboe EDGX Exchange, Inc.; Cboe C2 Exchange, Inc.; and Cboe Exchange, Inc.*
- Citadel Securities GP LLC, *parent company of petitioner Citadel Securities LLC*
- Citadel Securities LLC, *petitioner*
- Connolly, John Michael, *counsel for petitioner American Securities Association*
- Consolidated Audit Trail, LLC, *intervenor*
- Consovoy McCarthy, PLLC, *counsel for petitioner American Securities Association*
- Deutsch, Elizabeth B., *counsel for intervenor Consolidated Audit Trail, LLC*
- Dinkel, Christopher S., *counsel for Petitioner Citadel Securities LLC*

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- Financial Industry Regulatory Authority, Inc., *member of intervenor Consolidated Audit Trail, LLC*
- Francisco, Noel J., *counsel for petitioner Citadel Securities LLC*
- Gershengorn, Ian Heath, *counsel for intervenor Consolidated Audit Trail, LLC*
- Greenwalt, Paul, III, *counsel for intervenors Cboe BYX Exchange, Inc.; Cboe BZX Exchange, Inc.; Cboe EDGA Exchange, Inc.; Cboe EDGX Exchange, Inc.; Cboe C2 Exchange, Inc.; and Cboe Exchange, Inc.*
- Heckendorn, J. Maxwell, *counsel for intervenors Cboe BYX Exchange, Inc.; Cboe BZX Exchange, Inc.; Cboe EDGA Exchange, Inc.; Cboe EDGX Exchange, Inc.; Cboe C2 Exchange, Inc.; and Cboe Exchange, Inc.*
- Investors' Exchange, LLC, *member of intervenor Consolidated Audit Trail, LLC*
- Jenner & Block LLP, *counsel for intervenor Consolidated Audit Trail, LLC*
- Jones Day, *counsel for petitioner Citadel Securities LLC*
- Kastenbergh, Stephen J., *counsel for intervenors The NASDAQ Stock Market LLC; NASDAQ GEMX, LLC; NASDAQ ISE, LLC; NASDAQ MRX, LLC; NASDAQ PHLX, LLC; and NASDAQ Texas, LLC*

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- Lantieri III, Paul, *Ballard Spahr LLP, Counsel for Intervenors The NASDAQ Stock Market LLC, NASDAQ GEMX, LLC, NASDAQ ISE, LLC, NASDAQ MRX, LLC, NASDAQ PHLX, LLC, and NASDAQ Texas, LLC*
- Long-Term Stock Exchange, Inc., *member of intervenor Consolidated Audit Trail, LLC*
- Lucas, Brinton, *counsel for petitioner Citadel Securities LLC*
- MacLean, Matthew J., *counsel for NYSE intervenors*
- Madigan, Sarah M., *counsel for NYSE intervenors*
- Marshall, Jonathan J., *counsel for intervenor Consolidated Audit Trail, LLC*
- Matro, Daniel E., *counsel for respondent Securities and Exchange Commission*
- MEMX LLC, *member of intervenor Consolidated Audit Trail, LLC*
- Miami International Securities Exchange LLC, *member of intervenor Consolidated Audit Trail, LLC*
- MIAX Emerald, LLC, *member of intervenor Consolidated Audit Trail, LLC*
- MIAX PEARL, LLC, *member of intervenor Consolidated Audit Trail, LLC*

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- MIAX Sapphire, LLC, *member of intervenor Consolidated Audit Trail, LLC*
- Molzberger, Michael, *counsel for intervenors Cboe BYX Exchange, Inc.; Cboe BZX Exchange, Inc.; Cboe EDGA Exchange, Inc.; Cboe EDGX Exchange, Inc.; Cboe C2 Exchange, Inc.; and Cboe Exchange, Inc.*
- Montgomery, Sophia W., *counsel for intervenor Consolidated Audit Trail, LLC*
- NASDAQ GEMX, LLC, *intervenor and member of intervenor Consolidated Audit Trail, LLC*
- NASDAQ ISE, LLC, *intervenor and member of intervenor Consolidated Audit Trail, LLC*
- NASDAQ MRX, LLC, *intervenor and member of intervenor Consolidated Audit Trail, LLC*
- NASDAQ PHLX, LLC, *intervenor and member of intervenor Consolidated Audit Trail, LLC*
- NASDAQ Texas, LLC, *intervenor and member of intervenor Consolidated Audit Trail, LLC*
- New York Stock Exchange LLC, *intervenor and member of intervenor Consolidated Audit Trail, LLC*
- NYSE American, LLC, *intervenor and member of intervenor Consolidated Audit Trail, LLC*

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- NYSE Arca, Inc., *intervenor and member of intervenor Consolidated Audit Trail, LLC*
- NYSE National, Inc., *intervenor and member of intervenor Consolidated Audit Trail, LLC*
- NYSE Texas, Inc., *intervenor and member of intervenor Consolidated Audit Trail, LLC*
- Oliwenstein, David, *counsel for NYSE Intervenors*
- Paul, Weiss, Rifkind, Wharton & Garrison, LLP, *counsel for amicus curiae Securities Industry and Financial Markets Association*
- Phillips, David, *counsel for petitioner Citadel Securities LLC*
- Pillsbury Winthrop Shaw Pittman, LLP, *counsel for NYSE intervenors*
- Rabbitt, Brian C., *counsel for petitioner Citadel Securities LLC*
- Reisner, Lorin L., *counsel for amicus curiae Securities Industry and Financial Markets Association*
- Securities Industry and Financial Markets Association, *amicus curiae*
- Stern, Eric E., *counsel for amicus curiae Securities Industry and Financial Markets Association*
- Templin, Hannah, *counsel for petitioner Citadel Securities LLC*
- The Nasdaq Stock Market LLC, *member of intervenor Consolidated Audit Trail, LLC*
- United States Securities and Exchange Commission, *respondent*

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- Warnke, Anne S., *counsel for intervenor Consolidated Audit Trail, LLC*
Amicus curiae Securities Industry and Financial Markets Association
has no parent corporation, and no publicly held company owns 10% or more of
its stock.

/s/ Lorin L. Reisner

LORIN L. REISNER

Pursuant to Federal Rule of Appellate Procedure 27, amicus curiae Securities Industry and Financial Markets Association moves for leave to file a brief in support of the petition for review and motion for a stay.

1. The Securities Industry and Financial Markets Association (SIFMA) is the leading trade association for broker-dealers, investment banks, and asset managers operating in the United States and global capital markets. On behalf of industry members and their one million employees, SIFMA advocates on legislation, regulation, and business policy affecting retail and institutional investors, equity and fixed-income markets, and related products and services.

2. Amicus has a direct interest in this litigation concerning an order of the Securities and Exchange Commission because the amendments to the National Market System Plan for the Consolidated Audit Trail (CAT) will subject amicus or its members to significant, escalating, and largely uncontrolled fees.

3. On April 2, 2026, petitioners filed an opposed motion to stay the SEC's order until the Court rules on the merits of petitioners' challenge to the order. On May 21, 2026, petitioners filed their opening merits brief.

4. Amicus respectfully requests leave to file a brief in support of the petition for review and motion for a stay. Amicus has an interest in the disposition of the petition for review because the Commission's 2026 order

contravenes the Securities Exchange Act of 1934 and the Administrative Procedure Act. In addition, amicus has an interest in the disposition of the pending motion because, absent the relief requested by petitioners, amicus or its members may suffer irreparable harm. Under the Commission's order that petitioners seek to stay, broker-dealers must transfer millions of dollars to the self-regulatory organizations before this Court's ruling. As amicus explains in its brief, those funds are likely unrecoverable even if petitioners' challenge to the Commission's order is successful. Amicus's proposed brief is appended to this motion.

5. Counsel for amicus has contacted counsel for all parties concerning their position on whether they would consent to amicus's filing of its brief or whether they would not consent, necessitating the filing of a motion for leave to file the brief. Petitioners, respondent, the Cboe intervenors, and the Nasdaq intervenors have consented to the filing of the brief. Intervenor Consolidated Audit Trail, LLC, opposes the filing of the portion of the brief addressing the stay motion. Counsel for amicus was unable to obtain the NYSE intervenors' position.

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For the foregoing reasons, amicus's motion to file a brief in support of the petition for review and motion for a stay should be granted.

Respectfully submitted,

/s/ Lorin L. Reisner

LORIN L. REISNER

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MAY 28, 2026

**CERTIFICATE OF COMPLIANCE
WITH TYPEFACE AND WORD-COUNT LIMITATIONS**

I, Lorin L. Reisner, a member of the Bar of this Court and counsel for amicus curiae Securities Industry and Financial Markets Association, hereby certify, pursuant to Federal Rules of Appellate Procedure 27(d)(1)(E) and (d)(2) and Local Rule 27(a)(1), that the attached Motion for Leave to File Brief of Amicus Curiae Securities Industry and Financial Markets Association in Support of the Petition for Review and Motion for a Stay is proportionately spaced, has a typeface of 14 points or more, and contains 431 words.

/s/ Lorin L. Reisner

LORIN L. REISNER

MAY 28, 2026